

Mutual Legal Assistance Act, 2014

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Amending Act

1. Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30

Act Number 7 of the year 2070

An Act Made to Provide for Mutual Legal Assistance

Preamble: Whereas, it is desirable to make legal provisions relating to the exchange of mutual legal assistance between Nepal and foreign states in matters of judicial proceedings,

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament, has enacted this Act pursuant to Article 83 of the Interim Constitution of Nepal, 2063. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Mutual Legal Assistance Act, 2070".
- (2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Court" means the Supreme Court, the Court of Appeal, and the District Court, and the term also includes any other authority or body conducting judicial proceedings.
 - (b) "Order" means an order issued by a court, and the term also includes a decision or judgment of a court.
 - (c) "Offence" means an offence punishable with at least one year imprisonment or a fine of fifty thousand rupees under the law, and the term also includes an offence punishable with at least one year imprisonment or a fine of fifty thousand rupees under the law of a foreign state.
 - (d) "Central Authority" means the body or official designated pursuant to Section 6.
 - (e) "Judicial Proceedings" means proceedings from the filing of a case to the execution of a judgment, and the term also includes investigation or inquiry relating to any offence.
 - (f) "Judicial Document" means a plaint, claim petition, application, or appeal registered in a court, and the term also includes an order issued by a court.
 - (g) "Mutual Legal Assistance" means work or proceedings related to the matters mentioned in Section 5.
 - (h) "Summons" means a notice, subpoena, or citation issued in the name of any person in the course of a

case.

(i) "Foreign State" means a foreign state requesting mutual legal assistance with Nepal. Chapter-2

Circumstances and Subjects for Obtaining Mutual Legal Assistance

3.

Circumstances for Exchange of Mutual Legal Assistance: (1) If a bilateral treaty exists between Nepal and a foreign state regarding the exchange of mutual legal assistance, mutual legal assistance may be exchanged between Nepal and such a foreign state. (2) Notwithstanding anything contained in Sub-section (1), if a foreign state requests mutual legal assistance from the Government of Nepal, assuring that it will provide mutual legal assistance in similar types of judicial proceedings in the future, in relation to any judicial proceedings omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. added by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. legal assistance shall not be barred from being provided on the basis of reciprocity. added by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(3) Notwithstanding anything contained in Sub-section (2), a judgment rendered by a foreign court on a matter for which there is no treaty under Sub-section (1) shall not be enforceable. Provided that, a judgment rendered by a foreign court in relation to money laundering, terrorist activities, or financial investment in or related offences concerning the manufacture and proliferation of weapons of mass destruction, shall not be barred from enforcement based on reciprocity as prescribed. 4. Circumstances Where Mutual Legal Assistance Shall Not Be Exchanged: Notwithstanding anything contained in Section 3, mutual legal assistance shall not be exchanged in the following circumstances:- (a) In judicial proceedings of a civil nature where the claim amount is less than one hundred thousand rupees, (b) In matters of a criminal nature where the offence is punishable with less than one year imprisonment or a fine of less than fifty thousand rupees, (c) If providing mutual legal assistance as requested by a foreign state, or as a result thereof, would be prejudicial to public order or the sovereignty of Nepal. 5.

Subjects of Mutual Legal Assistance: Mutual legal assistance may be exchanged between Nepal and a foreign state on the following subjects related to judicial proceedings:- (a) Taking, collecting, or obtaining any documents or evidence, (b) Inspecting any related object or place and providing information and evidence thereof, amended by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(c) Collecting or providing certified copies of records or documents relating to banking, financial, tax, or commercial transactions, (d) Conducting searches, seizing objects, locating places where a person is present, or identifying a person, (e) Securing the attendance of a person who can provide assistance in matters of a criminal nature, (f) Serving summons, (g) Attaching or confiscating movable or immovable property, added by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(g1) Acquiring property of Nepal confiscated in a foreign state, or providing property confiscated in Nepal to a foreign state if such property belongs to that state, (h) Enforcing judgments. 6. Designation of Central Authority: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, designate any body or official as the Central Authority of the Government of Nepal to carry out work related to the exchange of mutual legal assistance between Nepal and foreign states. (2) The authority designated pursuant to Sub-section (1) shall perform the functions under this Act. Chapter-3 Procedure for Obtaining Mutual Legal Assistance 7. Request for Providing Evidence: (1) If an official authorized to conduct investigations or prosecutions under prevailing

law has sufficient reason to believe that any documents, evidence, information, or objects, including bank, financial, or commercial records, which would assist in the investigation or prosecution of an offence, are located in a foreign state, such official may request the Central Authority to provide such documents, evidence, information, or objects. (2) If there are sufficient grounds to believe that any documents, evidence, information, or objects, including bank, financial, or commercial records, which would assist in judicial proceedings, are located in a foreign state, the court may issue an order for that purpose. (3) If an order is made pursuant to Sub-section (2), the court shall request the Central Authority to provide such documents, evidence, information, or objects. (4) When requesting the provision of any documents, evidence, information, or objects pursuant to Sub-section (1) or (3), if it appears necessary to search any place or object or seize any object, the concerned authority or court may also request to search such place or object or seize any object. 8.

Request for Production of Person and Locating a Person's Whereabouts: (1) If there are sufficient grounds to believe that a person who can assist in judicial proceedings is in a foreign state, the court may issue an order for that purpose. (2) If it is necessary to locate the whereabouts in a foreign state of any person related to any judicial proceedings or to identify a person, the court may issue an order for that purpose. (3) If an order is made pursuant to Sub-section (1) or (2), the court may request the Central Authority to provide such person, or to locate the whereabouts in a foreign state of such person, or to identify such person. 9. Request for Service of Summons or Judicial Documents: (1) In any case filed in a court, if it is necessary to serve any summons or judicial document in the name of any person residing in a foreign state, the court may issue an order for that purpose. (2) If an order is made pursuant to Sub-section (1), the court shall send a letter to the Central Authority to serve such summons or judicial document in the name of the person residing in the foreign state. 10. Request for Taking Evidence: (1) If it appears necessary to take evidence in a foreign state in relation to any case pending in a court, the court may issue an order for that purpose. (2) If an order is made pursuant to Sub-section (1), the court shall send a letter to the Central Authority. 11.

Request for Examination of Witness and Issuing Commissions: (1) If, in the course of any judicial proceedings, it appears necessary to examine as a witness any person residing abroad, and such person is unwilling or unable to come to Nepal, the court may issue an order for examining such person as a witness by a court of the foreign state. (2) If an order has been issued for the examination of a witness pursuant to Sub-section (1), and such witness is unable to appear before the court of the foreign state, the court may issue an order for the examination of the witness by means of a commission. (3) Notwithstanding anything contained in Sub-section (2), upon the request of the concerned party, the court may issue an order for the examination of a witness and for a commission simultaneously. (4) If a witness, due to very old age or physical infirmity, is unable to appear before the court of the foreign state, or if a witness, due to being resident abroad, is unable to appear before a court in Nepal, and the court deems it appropriate to examine such witness through audio-visual communication (video conference), the court may issue an order for the examination of the witness through audio-visual communication. (5) If an order is made pursuant to this Section, the court shall send a letter to the Central Authority. 12. Request for Attachment or Confiscation of Property: (1) If there are sufficient grounds to believe that property related to judicial proceedings, or any part thereof, is located in a foreign state, the court may issue an order to attach or confiscate such property. (2) If an order is made pursuant to Sub-section (1), the court shall send a letter to the Central Authority for the attachment or confiscation of such property. 13. Request for Enforcement of Judgment: (1) If it appears necessary that a judgment rendered by a court of Nepal be enforced in a foreign court, the court may issue an order for that purpose. (2) If an order is made pursuant to Sub-section (1), the court shall send a letter to the Central Authority. 14.

Details to be Specified or Documents to be Attached when Sending Letter to the Central Authority: (1) When sending a letter to the Central Authority for mutual legal assistance pursuant to Section 7, 8, 9, 10, 11, 12, or 13, the concerned authority or court shall specify the following details:- (a) The court requesting judicial proceedings, a brief description of the judicial proceedings, and the relevant law, (b) The subject matter of the requested mutual legal assistance, (c) If the judicial proceedings are of a criminal nature, the maximum punishment possible in such proceedings; and if of a civil nature, the maximum claim amount, (d) The location and nature of the documents, evidence, information, objects, or property related to the judicial proceedings, (e) If a search is to be conducted, the description of the objects and the full address of such place, (f) Regarding the person who can assist in the judicial proceedings, his/her name, description, nationality, and if available, passport or national identity card number, and any other necessary details for identification, and as far as possible, information regarding the current place of residence, (g) Confirmation that the requested documents, evidence, information, objects, or person have a substantive connection to the judicial proceedings, (h) If the original copy of the relevant evidence or documents is required, confirmation thereof and an assurance of return if required to be returned, (i) The competent authority in the foreign country requested to provide mutual legal assistance, (j) The timeframe for providing mutual legal assistance, (k) If sending a letter for searching or confiscating any object, the basis establishing that the person owning such object has committed an offence in Nepal or that property has been increased or augmented from such offence, (l) If requesting service of summons or judicial documents,- (1) Full name of the person on whom the summons or judicial document is to be served, (2) The country where the person pursuant to sub-clause (1) resides, details of passport or national identity card number if available, description and nationality, and any other necessary details for identification, and as far as possible, information regarding the current place of residence, (3) If the summons or judicial document cannot be served at the address of the person pursuant to sub-clause (2), the country and address of the establishment where the person works or conducts business. (m) If requesting to take evidence,- (1) If the court or body requested to take evidence can be identified, the details of such court or body, (2) Details of the evidence to be taken or other judicial work to be performed, (3) If a witness is to be examined, the name, surname, nationality of such witness, and details of passport or national identity card that can identify him/her, (4) If a witness is to be examined by commission, the details of the questions to be asked, (5) Whether an oath is required or not when examining the witness, (6) If any document, movable or immovable property needs to be inspected, measured, surveyed, mapped, or examined, the details thereof. (n) If requesting confiscation or attachment of property,- (1) Details of whether judicial proceedings related to the property are pending, filed, or not yet decided, (2) Details of the substantial relationship of the act of confiscating property to the judicial proceedings, (3) Details of whether an order of confiscation has been made and that there is no possibility of appeal against it, (4) Details of the remaining amount to be paid according to the confiscation order, (5) If the person affected by the confiscation order was not present before the court, details that he/she received notice with sufficient time for his/her defense. (o) Any other necessary details. (2) When requesting details pursuant to Sub-section (1), the following documents shall be attached:- (a) If sending for producing a person, locating a person's whereabouts, or identification, a photograph of that person, if possible, (b) Proof that the person requested to appear has voluntarily expressed willingness to appear, (c) The order made by the court in this regard, (d) If a summons or judicial document is to be served, two copies of the official copy of the summons or judicial document to be served, (e) If sending for enforcement of a judgment- (1) A certified true copy of the court's judgment, (2) Proof that there is no possibility of appeal against the judgment.

15. Request to Foreign State for Obtaining Mutual Legal Assistance: (1) Upon receiving a letter for mutual legal assistance pursuant to Section 7, 8, 9, 10, 11, 12, or 13, the Central Authority shall, to obtain such legal

assistance, omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. request the foreign state.

(2) When making a request pursuant to Sub-section (1), the Central Authority shall, in addition to the matters mentioned in Section 14, specify the following details:-

(a) The name of the requesting authority or court,

(b) If any specific procedure needs to be followed while implementing the request in the foreign state and providing information or objects as requested, the details thereof,

(c) If confidentiality of the request is desired, the basis and reason thereof,

(d) If a person is requested to appear, arrangements for his/her security, food, accommodation, and other facilities,

(e) If the request is made pursuant to a treaty, and if a separate procedure is to be followed under such treaty when making a request, the details thereof,

(f) Any other details specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(3) When making a request pursuant to Sub-section (2), the following documents shall be attached:-

(a) If a person is requested to appear, an assurance that such person will not be detained, prosecuted, or punished based on any illegal act committed by him/her before the request, and that such person will be returned to the concerned country,

(b) An assurance that such person will not be compelled to give evidence other than on the requested subject or to provide assistance on other matters,

(c) An assurance that no legal action or punishment will be taken against such person regarding those judicial proceedings, except for giving false statements or contempt of court,

(d) If a search is requested, an assurance that objects seized during the search will be kept safely and returned after the completion of such purpose,

(e) If any documents, objects, or information are requested, a commitment that they will not be made public without the consent of the concerned country,

(f) Any other documents specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(4) When requesting mutual legal assistance pursuant to this Section, if there is no treaty with that country for that purpose and if it is necessary to give an assurance that legal assistance will be provided on a reciprocal basis if such country requests similar nature of mutual legal assistance in the future, the Central Authority may omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. give such assurance.

16. Admissibility as Evidence: (1) Evidence received by the court through the Central Authority, after being taken according to the law of the foreign state pursuant to a request made under Section 15, may be deemed to have been taken according to law and may be admitted as evidence.

(2) Notwithstanding anything contained elsewhere in this Act, if the taking of evidence from the foreign state is refused or if evidence is not taken by the competent authority of such country, it shall not be a bar solely for

that reason to decide the case after examining other available evidence.

(3) A certificate issued by the official body of the foreign state, mentioning the value of property confiscated in the foreign state and the date of confiscation, based on a request for mutual legal assistance made under Section 15, may be admitted as evidence for any judicial proceedings.

(4) Notwithstanding anything contained in prevailing law, witness examination or commissions conducted abroad pursuant to this Act shall be deemed as if the witness examination or commission was conducted in a court in Nepal and may be admitted as evidence. 17. Special Arrangements for Producing Persons: (1) If a person comes to Nepal in the course of mutual legal assistance pursuant to a request made under Section 15, the Central Authority shall coordinate with the official body of the foreign state and make proper arrangements for the arrival and departure of such person.

(2) If a person who comes to appear in the course of mutual legal assistance is in detention according to the law of the concerned foreign country, judicial assistance shall be obtained by keeping such person in detention in Nepal as well. 18.

Deemed Valid Service of Summons or Judicial Documents: (1) If a communication is received indicating that summons or judicial documents have been served in the name of the concerned person by the foreign state based on a request made for mutual legal assistance under Section 15, the summons or judicial documents shall be deemed to have been validly served in his/her name. (2) If the foreign state refuses to serve the summons or judicial documents based on a request made for mutual legal assistance under Section 15, or if such country informs the court through the Central Authority omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. that the summons or judicial documents could not be served because the person could not be found or identified, the details of such summons or judicial documents shall be published in a national daily newspaper of the country where such person resides or of Nepal. (3) If the summons or judicial documents are served pursuant to Sub-section (2), they shall be deemed to have been validly served. Chapter-4 Procedure for Foreign States to Request Mutual Legal Assistance 19. Request for Providing Documents, Evidence, Information, or Objects: (1) While investigating a case, conducting judicial proceedings, or enforcing a judgment in a foreign country, if there are sufficient grounds to believe that any documents, evidence, information, or objects which would assist in such work are within Nepal, the concerned foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. for mutual legal assistance. (2) When making a request pursuant to Sub-section (1), if it appears necessary to search any place or object or seize any object, the foreign state may also request to search such place or object or seize any object. 20. Request for Producing Person and Locating a Person's Whereabouts: (1) If a person present in Nepal can assist in any judicial proceedings pending in a foreign state, the foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. to produce such person. (2) If it is necessary to locate the whereabouts of any person related to any judicial proceedings or to identify a person, the foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. accordingly. 21.

Request for Service of Summons or Judicial Documents: If a person or body related to judicial proceedings pending in a foreign court is in Nepal, and it is necessary to issue any summons or judicial document in the name of such person or body, the foreign state may request the Government of Nepal omitted by the Act to

Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. to serve any summons or judicial document issued by that court pursuant to its order. 22. Request for Taking Testimony or Evidence: (1) If, in the course of any judicial proceedings pending in a foreign court or body, it appears necessary to examine as a witness any person residing in Nepal, the foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. pursuant to the order of the court or body of such foreign state. (2) If it is necessary to take any evidence within Nepal in relation to any case pending in the court or body pursuant to Sub-section (1), the foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. pursuant to the order of the court or body of the foreign state. 23. Request for Enforcement of Order Relating to Attachment or Confiscation of Property: If property related to any judicial proceedings pending in a foreign court, or any part thereof, is in Nepal and it is necessary to enforce an order made by the court of the foreign state to attach or confiscate such property, the foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. accordingly. 24. Request for Recognition or Enforcement of Judgment: If it is necessary to recognize or enforce a judgment of a foreign court related to judicial proceedings, such foreign state may request the Government of Nepal omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. accordingly. 25. Details to be Specified or Documents to be Attached: When a foreign state requests the Government of Nepal for mutual legal assistance pursuant to this Chapter, the provisions under Sections 14 and 15 shall apply with the necessary modifications, and accordingly, the concerned foreign state shall specify the necessary details or attach the relevant documents. 26.

Request Relating to Mutual Legal Assistance to be Sent to Central Authority: Upon receiving a request for mutual legal assistance from a foreign state pursuant to Sections 19, 20, 21, 22, 23, and 24, the Ministry of Foreign Affairs of the Government of Nepal shall send such request and the details, documents, and evidence attached therewith to the Central Authority for mutual legal assistance. 27. Central Authority to Conduct Necessary Study and Inquiry: (1) Upon receiving a request, details, documents, and evidence for mutual legal assistance pursuant to Section 26, the Central Authority shall conduct a necessary study and inquiry thereof and decide within fifteen days whether to proceed with the proceedings for providing mutual legal assistance or not. (2) While conducting the study and inquiry pursuant to Sub-section (1), if it appears that the details, documents, and evidence received with the request are not sufficient to proceed with the proceedings relating to mutual legal assistance, the Central Authority may send a letter to the foreign state omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. to submit additional details, documents, and evidence. (3) If a decision is made to proceed with the proceedings relating to mutual legal assistance pursuant to Sub-section (1), the Central Authority shall, for the purpose of providing mutual legal assistance, issue an order to the investigating body if the mutual legal assistance requested is related to investigation, and to the concerned District Government Attorney to file a petition in the concerned District Court if the mutual legal assistance requested is other than that. 28.

Refusal to Provide Mutual Legal Assistance: Notwithstanding anything contained in Section 27, the Central Authority may refuse to provide mutual legal assistance in the following circumstances:- (a) If the situation under Section 4 exists, (b) If the request is not made pursuant to a bilateral treaty, (c) If a request is made for mutual legal assistance in a matter related to an offence, and such offence is of a political nature, (d) If the details, documents, or evidence requested pursuant to Sub-section (2) of Section 27 are not received from

the concerned foreign country, (e) If the requested subject appears to be related to an offence under military law, (f) If it appears that an investigation, legal proceedings, or punishment is sought against any person based on race, religion, gender, ethnic origin, nationality, or political opinion, (g) If the requested subject appears to be insignificant for investigation or if such information can be obtained through other means, (h) If an assurance is not obtained that the subject matter for which mutual legal assistance is requested will not be used for any other work or proceedings, (i) If providing mutual legal assistance would be prejudicial to public order. 29. Petition to be Filed in Court: (1) Upon receiving an order from the Central Authority to provide mutual legal assistance pursuant to Sub-section (3) of Section 27, the concerned District Government Attorney shall file a petition in the concerned District Court along with the details, documents, and evidence received from the foreign state. (2) If, upon examining the petition received pursuant to Sub-section (1) and the details, documents, and evidence attached therewith, the following conditions appear, the court may refuse to provide mutual legal assistance:- (a) If a petition is filed for mutual legal assistance in a matter related to an offence, and such offence appears prima facie not to be established, (b) If the mutual legal assistance is contrary to the general principles of justice. (3) Notwithstanding anything contained in Sub-section (2), even if the condition under that Sub-section appears at any time, the court may refuse to provide such mutual legal assistance. 30. Information of Refusal of Mutual Legal Assistance to be Given: If mutual legal assistance is refused pursuant to Section 28 or 29, the Central Authority shall inform the foreign state omitted by the Act to Amend Some Nepal Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. within seven days. Chapter-5 Providing Mutual Legal Assistance 31.

Order to Provide Mutual Legal Assistance: If an order is issued by the Central Body to the concerned investigation officer to provide mutual legal assistance pursuant to Sub-section (3) of Section 27, or if the court pursuant to Section 29 does not refuse to provide such mutual legal assistance, the concerned investigation officer or court shall issue an order to proceed with the necessary proceedings in that regard to provide mutual legal assistance as requested by the foreign state. 32. Providing Evidence: (1) If a foreign state has requested to provide any documents, evidence, information, or objects pursuant to Section 19, and if such documents, evidence, information, or objects can be provided according to law, the concerned authority or court shall order the sending of a certified copy of such documents, evidence, information, or objects. (2) If the foreign state has requested to provide the original copy or the object itself of the documents, evidence, or information under Sub-section (1), the concerned authority or court may, keeping a certified copy of such documents, evidence, or information, order the sending of the original copy itself, and if it is an object, shall keep a record describing its details and provide such object. (3) If a request has been received from a foreign state to search any object or take it into custody, the concerned body shall search or take the object into custody according to law. (4) Notwithstanding anything contained in Sub-section (3), if a request is made to search or take any object into custody in relation to an offence, and if such act is not considered an offence under the laws of both Nepal and the requesting foreign state, the request for search or seizure of such object may be refused. 33.

Producing a Person, Locating a Person's Whereabouts, or Identifying a Person: (1) If a foreign state has requested the presence of any person pursuant to Section 20, the Central Authority shall coordinate with the foreign state to make arrangements for sending such person from Nepal and bringing him/her back to Nepal. (2) If the person requested to appear pursuant to Sub-section (1) is in detention in Nepal, he/she shall be handed over to the official body of the foreign state at the entry point of Nepal after obtaining permission from the concerned court. (3) After the work of the person handed over pursuant to Sub-section (2) is completed in the foreign state, he/she shall be taken back from the official body of the foreign state at the entry point of

Nepal. (4) If a foreign state has requested to locate the whereabouts of any person related to any judicial proceedings or to identify a person, the concerned authority shall locate the whereabouts of such person or identify the person. 34. Service of Summons or Judicial Documents: (1) If a foreign state has requested to serve a summons or judicial document pursuant to Section 21, the concerned court shall, deeming it as if judicial proceedings were pending in that court itself, serve such summons or judicial document according to law. (2) While serving the summons or judicial document pursuant to Sub-section (1), if it is required to serve such summons or judicial document by adopting a specific procedure or method according to a treaty with the foreign state or according to the request of the court of the foreign state, and if the Central Authority has also made a request accordingly, the concerned court shall serve such summons or judicial document by adopting such procedure or method. (3) After serving any summons or judicial document pursuant to this Section, the concerned court shall prepare a service report of such document. (4) If the service report under Sub-section (3) needs to be translated into the English language as requested by the court of the foreign state, the Central Authority shall translate it and certify the original copy received from the concerned court and the translated copy. 35.

Taking Testimony or Evidence: (1) If the court of a foreign state has requested to take testimony or evidence pursuant to Section 22, the concerned court shall take evidence deeming it as if evidence were being taken in proceedings of a case pending in that court. (2) While taking evidence pursuant to Sub-section (1), if the court needs to issue a summons for any witness or person to appear before the court, it shall serve the summons according to law by granting a period of up to seven days, excluding the time for travel. (3) While taking evidence pursuant to Sub-section (1), the concerned court shall take evidence limited to the matters concerning the examination of witnesses, preparation of answers to commissions, or provision of details of evidence, documents, or movable or immovable property, as requested by the court of the foreign state. (4) When examining a witness, preparing answers to commissions, or taking documents or evidence pursuant to Sub-section (3), if the parties to the case for which evidence is taken pursuant to this Section, or their representatives or legal practitioners, wish to be present in the court, the concerned court may permit such parties, representatives, or legal practitioners to be present in the court at the time of taking evidence. (5) While taking evidence pursuant to this Section, the law of Nepal shall be applied. (6) Notwithstanding anything contained in Sub-section (5), if there is a treaty with the foreign state for taking evidence by adopting a specific procedure or method on a specific matter, or if the foreign state has so requested, and if the Central Authority has also requested to take evidence accordingly, the concerned court shall take evidence accordingly. 36. Attachment or Confiscation of Property: (1) If a request is received from a foreign state pursuant to Section 23 to attach or confiscate any property located in Nepal, the court shall, according to the prevailing law of Nepal, issue an order to the concerned body to attach or confiscate the property. (2) Notwithstanding anything contained in Sub-section (1), if the court is satisfied that the person whose property is ordered to be confiscated in relation to an offence has paid the amount due or, having been unable to pay, has served the sentence of imprisonment in lieu of such amount, the court shall not issue an order to confiscate the property.

Provided that, if the property was obtained by committing an offence or was used in committing an offence, it shall be confiscated.

(3) If the value of the property to be confiscated is expressed in a currency other than Nepali currency, for the purpose of determining the claim amount under this Act, such value shall be converted into Nepali currency based on the foreign exchange rate determined by Nepal Rastra Bank on the day the petition pursuant to Section 29 was filed in the court. 37. Special Provisions Relating to Enforcement of Judgments of Foreign

Courts: (1) Notwithstanding anything contained elsewhere in this Act, a foreign state or foreign party wishing to obtain recognition of a judgment of a civil nature rendered by a foreign court or to enforce such judgment in Nepal shall file a petition in the concerned Court of Appeal, attaching the following documents:-

(a) A certified full copy of the judgment,

(b) If the judgment was rendered in the absence of any party, the original or certified copy of the document establishing that such party was validly served with summons,

(c) All documents establishing that the judgment fulfills the conditions under Clauses (b) and (c) of Sub-section (2),

(d) A copy of the full text of the judgment translated into the Nepali language, certified by the concerned diplomatic or consular representative or a person authorized to make official translations.

(2) Upon studying the documents received with the petition pursuant to Sub-section (1), if the judgment rendered by the foreign court appears to fulfill the following conditions, the concerned Court of Appeal shall recognize the judgment of the foreign court and send it to the concerned District Court for enforcement:-

(a) If such judgment appears to have been rendered by a competent court having proper jurisdiction,

(b) If such judgment is enforceable in the concerned country,

(c) If such judgment is final according to the law of the concerned country and is not subject to review.
Explanation: For the purpose of this Section, "concerned District Court" means the District Court of the area where the property, including the amount to be recovered, property to be partitioned, or property to be used under the judgment, is located.

(3) Notwithstanding anything contained in Sub-section (2), a judgment rendered by a court of a foreign country shall not be recognized in Nepal, and such judgment shall not be enforceable within Nepal,